

I. Request

1. The Directorate-General for European Affairs of the Ministry of Foreign Affairs submitted on March 13, 2025, to the National Data Protection Commission (CNPd), for opinion, the Draft Agreement on Enhanced Partnership and Cooperation between the European Union and its Member States, on one side, and the Kyrgyz Republic, on the other, signed in Brussels on June 25, 2024.
2. The original Agreement was deposited in the Diplomatic Archive on February 26, 2025.

II. Competence of the CNPD

1. It is the responsibility of the CNPD to issue opinions within the scope of its duties and powers, as the national authority for the control of the processing of personal data, in accordance with the provisions of Articles 57, paragraph 1, subparagraph c) and 58, paragraph 3, subparagraph b) of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (General Data Protection Regulation – hereinafter GDPR), in conjunction with the provisions of Articles 3, 6, paragraph 1, subparagraph a) and paragraph 2, all of Law No. 58/2019, of August 8, which aims to ensure the implementation, in the internal legal order, of the GDPR (Law on the Implementation of the GDPR, hereinafter LERGD). The issuance of this opinion is also based on paragraph 2 of Article 30, in conjunction with paragraph 1 of Article 43 and with subparagraphs a) and c) of paragraph 1 of Article 44, all of Law No. 59/2019, of August 8.
2. The opinion of the CNPD refers to legal instruments being prepared in community and international institutions, related to the processing of personal data.

III. Analysis

3. In the present case, the text of the agreement is no longer in the negotiation phase, making it impossible for the Portuguese authorities to propose any amendments in the event of any non-compliance with the current personal data protection regime.
4. In these terms, the issuance of an opinion on a signed agreement does not have the desired utility of the prior consultation provided for by law, in terms of the compliance of the text with the legal regime of personal data protection, thus failing to fulfill the legal obligation effectively.
5. Given the futility of the CNPD's opinion at this stage regarding the introduction of amendments that would improve the text of the Agreement, the CNPD does not express a position on its content.

IV. Conclusion

6. (In light of the observations made, the CNPD considers that the issuance of an opinion on a legal instrument that is no longer in the preparation phase is of no utility, and therefore does not express a position on it.
7. In view of the above, the CNPD decides to terminate the present process, pursuant to Articles 93 and 95 of the Code of Administrative Procedure.

Approved at the meeting of April 1, 2025

MARIA CÂNDIDA OLIVEIRA

Digitally signed by

MARIA CÂNDIDA OLIVEIRA

Date: 2025.04.01 16:19:44

+01'00'

Maria Cândida Oliveira (Member substituting the President)

1v.